



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Lonnie Olson, Planner I
Subject: PUDC-23-103 / Lot 3, 4, 5, 6, 7, & 8, Block 1, Hitching Post Plaza, 3rd Filing Zoning Map Amendment
Date: September 11, 2023

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 09/11/2023
- Public Services Committee 09/19/2023
- Second reading 09/25/2023
- Public Services Committee 10/03/2023
- Third and final reading 10/09/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their September 5, 2023 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO MUB MIXED-USE BUSINESS FOR LAND LOCATED ON LOTS 3, 4, 5, 6, 7, AND 8, BLOCK 1, HITCHING POST PLAZA, 3RD FILING.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein have applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on September 5, 2023, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 3, 4, 5, 6, 7, & 8, Block 1, Hitching Post Plaza, 3rd Filing is hereby changed to MUB Mixed-Use Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and upon the official filing of the affiliated Hitching Post Plaza, 3rd Filing final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

SEPTEMBER 5, 2023

STAFF REPORT

FILE: PUDC-23-103: Hitching Post Plaza, 3rd Filing – Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 4.55 acres of land from CB Community Business to MUB Mixed-Use Business

LOCATION: Lots 3, 4, 5, 6, 7, & 8, Block 1, Hitching Post Plaza, 3rd Filing

APPLICANT: Casey Palma, Palma Land Planning LLC

AGENT: Casey Palma, Palma Land Planning LLC

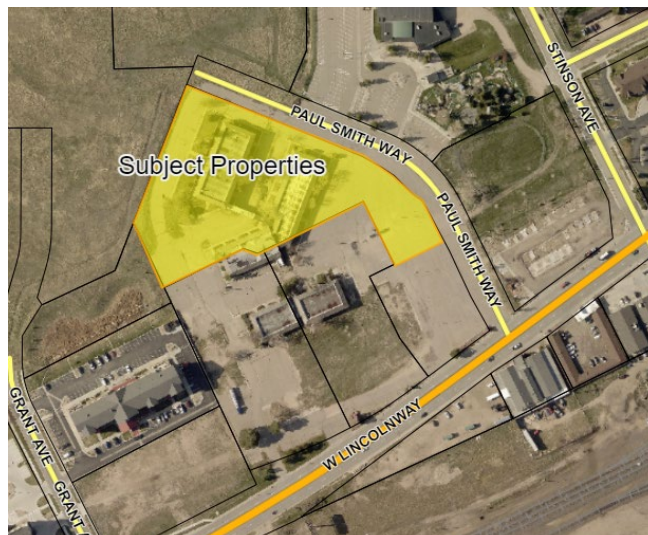
OWNER: 1600 Hitching Post, LLC

ZONING: CB Community Business

FUTURE LAND USE: Mixed-Use Commercial and Mixed-Use Residential

PURPOSE: To allow for smaller setbacks and more residential development options

PREPARED BY: Lonnie Olson, Planner I



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lots 3, 4, 5, 6, 7, & 8, Block 1, Hitching Post Plaza, 3rd Filing to MUB Mixed-Use Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from CB Community Business to MUB Mixed-Use Business for 4.55 acres of vacant land. The properties are anticipated to have a variety of commercial uses and possible housing on the north of the property. One of the properties to the north has a zoning map amendment being considered to change the zoning from Mixed-Use Business to Public for the new gymnastics facility.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-Use Commercial and Mixed-Use Residential	CB Community Business	Vacant Lot
North	Mixed-Use Residential	CB Community Business, MUB Mixed-Use Business (proposed to be changed to Public)	Vacant Lot and Event Center
South	Mixed-Use Commercial	CB Community Business	Vacant Lot
East	Mixed-Use Commercial	CB Community Business	Hotel
West	Mixed-Use Commercial	CB Community Business	Hotel

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development.

The Future Land Use Designation for this property is Mixed-Use Commercial and Mixed-Use Residential and the surrounding area is Mixed-Use Commercial and Mixed-Use Residential. According to the comprehensive plan the optimal City zones for the subject property's future land use designations is MUB Mixed-Use Business and MUR Mixed-Use Residential, although a variety of commercial, residential, and mixed-use zones could also be appropriate based on the context of the site.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Nearby properties to the north are zoned MUB. This is the same zone that is proposed with this zoning map amendment.

Nearby properties to the north, south, east, and west are zoned CB. Some of these properties are a part of a commercial corridor along a principal arterial. The Comprehensive Plan encourages commercial activities which serve neighborhoods, the community, and region. The Comprehensive Plan encourages the blending of CB zones with nearby neighborhoods in terms of scale, design, signage, and lighting. The MUB zone is intended for a diverse mix of residential, retail, service, employment and civic uses integrated into a walkable compact development pattern.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current CB zone allows a variety of commercial uses but prohibits residential uses and requires large setbacks from streets. The proposed MUB zone allows a variety of commercial uses, residential uses, and mixed uses. The MUB zone also allows buildings to be built to the street. The MUB zone has a higher design standard than the CB zone; however, the subject property should be able to meet the required the design standards.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The existing block is the type expected for the urban-style of development anticipated for MUB zoning. CB zoning typically anticipates larger suburban-style blocks. The proposed pattern with the associated plat is compatible with the proposed zoning and no further subdivision is expected.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The MUB zone is intended for a diverse mix of residential, retail, service, employment and civic uses integrated into a walkable, compact development pattern. The MUB District is applicable to areas where more intense development and diverse mix of uses is appropriate with a high level of pedestrian and civic amenities.

The existing development patterns, including existing uses, are reflective of the intent and applicability of the MUB zone. Commercial and Civic uses are within a short distance of the subject property.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The existing property meets the standards of the MUB zone. The MUB zone allows a building to be brought closer to the street, while a new building on this property in the CB zone would require 25' setbacks from both streets.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process the following comments were received:

- Concerns with the southwestern lots meeting applicability of the MUB zone

- Concerns with meeting the intent of the Urban Use zone

The revised zoning map submitted on August 24, 2023 addressed staff's comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The MUB Mixed-Use Business is appropriate based on the future land use map, surrounding zoning, and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

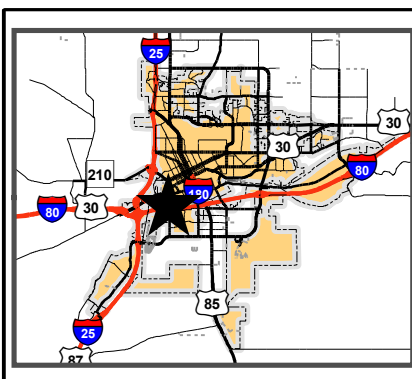
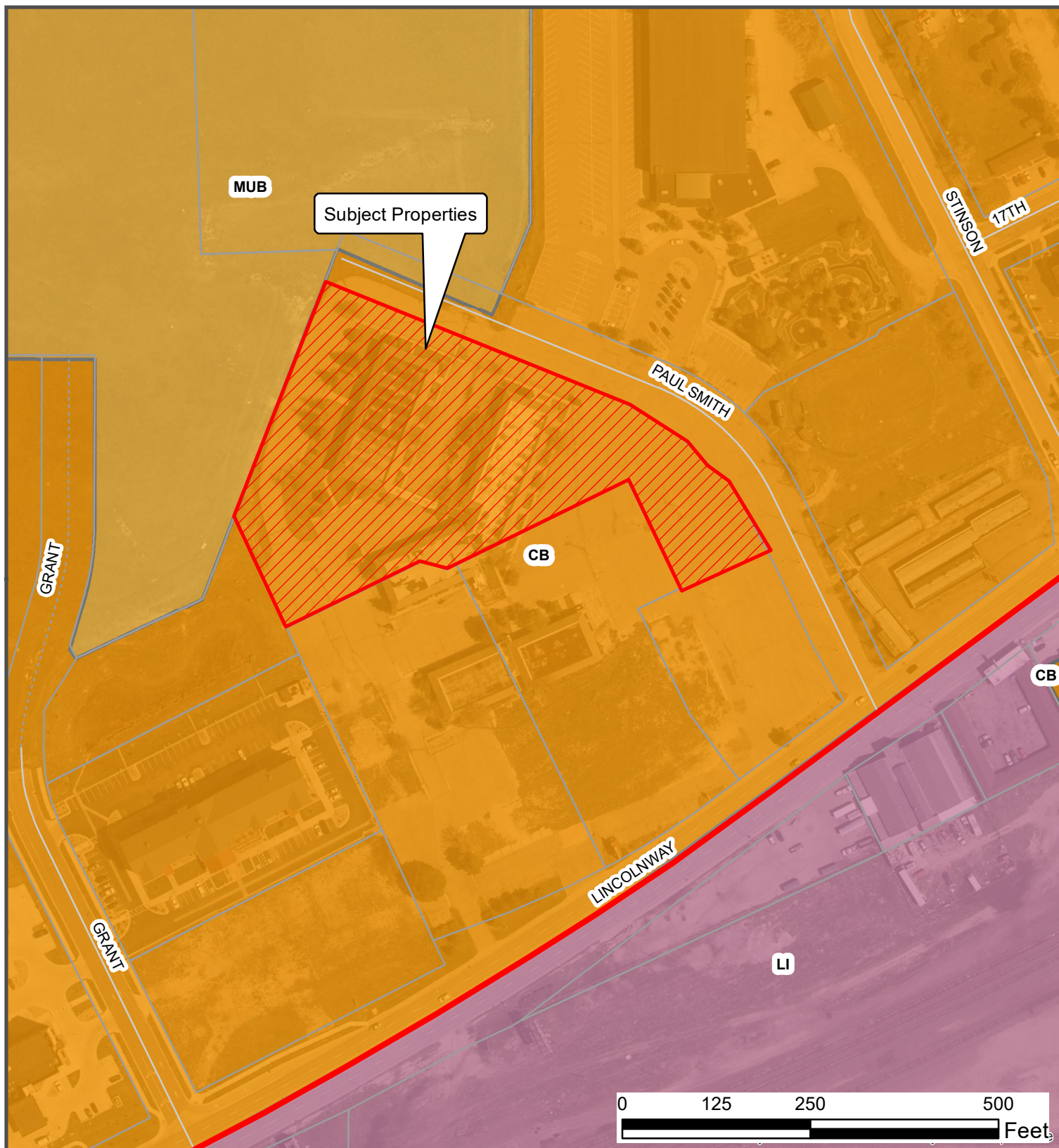
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from CB to MUB

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Maps

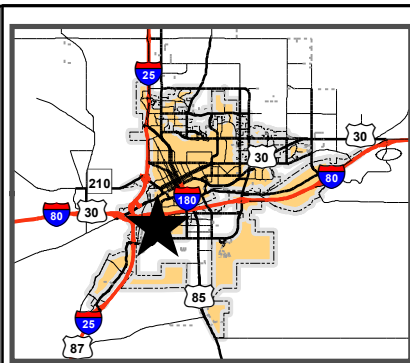
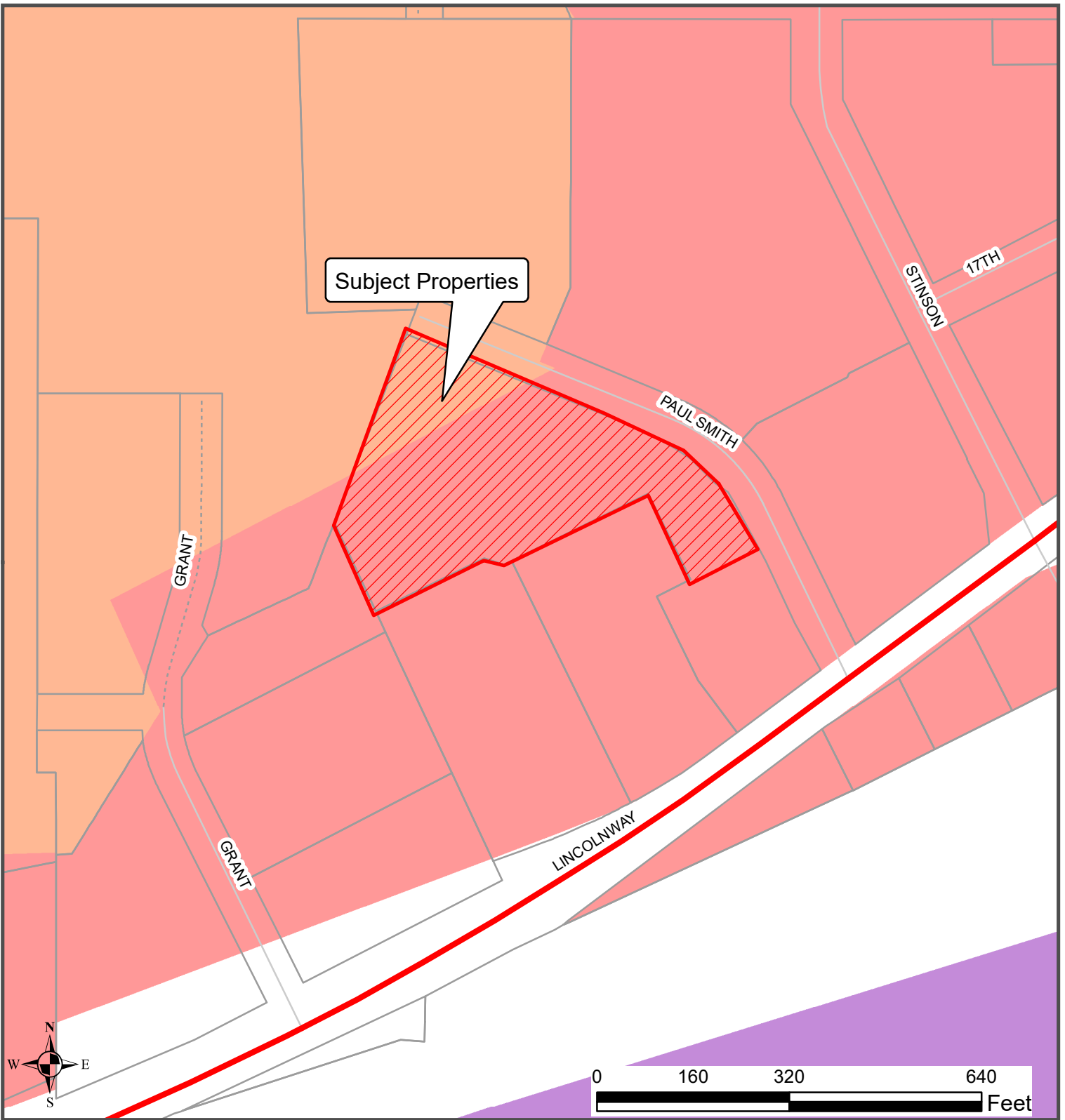


Attachment 1: Zoning Map PUDC-23-103

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-23-103

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Ownership		



Cheyenne, WY

08/29/2023

PUDC-23-103

Zoning Map Amendment

Status: Active**Date Created:** Jul 19, 2023

Applicant

Casey Palma
casey@plandesignwy.com
1775 Goodnight Trail
Suite 210
Cheyenne, WY 82007
3079968281

Primary Location

0 W LINCOLNWAY
Cheyenne, WY 82001

Owner:

1600 HITCHING POST LLC
2366 MUGHO RD CHEYENNE, WY 82009

Application

Project Name

Hitching Post Plaza, 3rd Filling

Proposed Zoning

MUB Mixed-Use Business Emphasis

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.

Casey L. Palma, AICP for Palma Land Planning, LLC
07/19/2023

Staff use

Attachments

 HPPZC_LOA-SIGNED_1600HitchingPost_CityApplication.pdf
Uploaded by Casey Palma on Jul 19, 2023 at 4:57 pm

 21130E_HPP3-RevZC_082323.pdf
Uploaded by Casey Palma on Aug 24, 2023 at 12:37 am

 HPP3_LOLetter.pdf
Uploaded by Casey Palma on Aug 23, 2023 at 1:32 pm



 HPP3_BufferList.csv

Uploaded by Casey Palma on Jul 19, 2023 at 4:53 pm



IMG_1508.jpeg

Uploaded by Casey Palma on Aug 15, 2023 at 4:31 pm

 Zone_Change_Letter.pdf

Uploaded by Lonnie Olson on Aug 25, 2023 at 10:14 am



IMG_1507.jpeg

Uploaded by Casey Palma on Aug 15, 2023 at 4:31 pm

PALMA

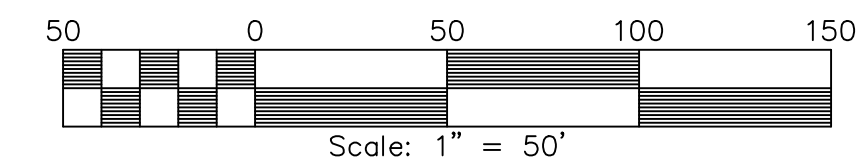
Land Planning

SITE & SUBDIVISION DESIGN
ZONING | LANDSCAPE ARCHITECTURE

1775 Goodnight Trail, Suite 210 | Cheyenne, WY 82007
www.PlanDesignWY.com

LEGEND

- SET 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¾" x 24" REBAR
- FOUND 1½" ALUMINUM CAP "SSS P.L.S. 2500"
- FOUND 1½" ALUMINUM CAP "SSS P.L.S. 5910"
- FOUND 2" ALUMINUM CAP STAMPED AS NOTED
- FOUND ALUMINUM CAP "P.E.L.S. 2617"
- FOUND ¾" REBAR
- FOUND NAIL
- (M) DENOTES MEASURED DATA
- (R) DENOTES RECORD DATA
- CIEC, --- DENOTES CHEYENNE ICE AND EVENTS CENTER, FILE #
- HPP, --- DENOTES HITCHING POST PLAZA, FILE #
- DENOTES SHARED DRAINAGE EASEMENT(S) OR PUBLIC PEDESTRIAN EASEMENT(S)



LAND DESCRIPTION

A ±4.55 acre portion of Lot 3, Block 1, Hitching Post Plaza, 2nd Filing, City of Cheyenne, Laramie County, Wyoming TBKA Lots 3, 4, 5, 6, 7, & 8, Block 1, Hitching Post Plaza, 3rd Filing

CURRENT ZONING:

CB - COMMUNITY BUSINESS

PROPOSED ZONING:

MUB - MIXED-USE BUSINESS

BOUNDARY CURVE TABLE

CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	41° 13' 16"	260.00'	S46° 45' 55"E	183.05'	187.06'

SURVEYOR:

STIEL SURVEYING SERVICES
1102 WEST 19th STREET
CHEYENNE, WY 82001
307-634-7273

CIVIL ENGINEER:

LOVAS ENGINEERING
1869 GRIZZLY GULCH
CHEYENNE, WY 82009
307-421-7835

OWNER:

1600 HITCHING POST, LLC
2366 MUGHO RD
CHEYENNE, WY 82009

TRANSPORTATION ENGINEERING:

W2 TRAFFIC ENGINEERING, LLC
MICHAEL GOSTOVICH, P.E.
11800 BLAZER ROAD
CHEYENNE, WY 82009

PUD ZONING & PLANNING CONSULTANT

PALMA LAND PLANNING
1775 GOODNIGHT TRAIL, SUITE 210
CHEYENNE, WY 82007
307-996-8281

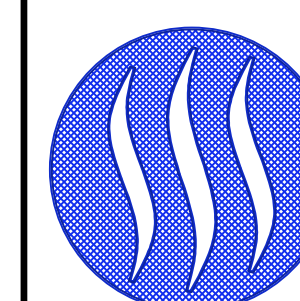
DEVELOPER:

SWAGGER CONSTRUCTION
2366 MUGHO ROAD
CHEYENNE, WY 82009
307-222-6386

ZONE CHANGE MAP for LOTS 3 thru 8, BLOCK 1, HITCHING POST PLAZA, 3rd FILING

A RE-ZONING OF ALL OF LOTS 3, 4, 5, 6, 7, & 8,
BLOCK 1, HITCHING POST PLAZA, 3rd FILING
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING

PREPARED JANUARY 2023



STIEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS

1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789
www.StielSurvey.com • info@StielSurvey.com

REVISED: 08/24/2023

\\21130 HITCHING POST ALTA PAS\\21130E ZC_HPP3.DWG

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VICINITY MAP

